

**UNITED STATES BANKRUPTCY COURT
FOR THE WESTERN DISTRICT OF VIRGINIA
LYNCHBURG DIVISION**

In re:

**CLYDE A. LONG, JR. AND
LATOYA L. LONG,

Debtors.**

Chapter 7

Case No. 13-60044

**CRYSTAL D. LEWIS,

Plaintiff,**

v.

**CLYDE A. LONG, JR.,

Defendant.**

Adversary Case No. 13-06030

**ORDER GRANTING DEFENDANT’S MOTION FOR JUDGMENT ON PARTIAL
FINDINGS AND DENYING PLAINTIFF’S SECTION 523(a)(6) ACTION**

This issue comes before the Court upon the trial of the above-referenced Adversary Proceeding. At the close of Ms. Lewis’s evidence, Mr. Long requested the Court grant Judgment on Partial Findings under Federal Rule of Bankruptcy Procedure 7052. The Court may enter Judgment on Partial Findings under Federal Rule of Civil Procedure 52(c) when a party has been fully heard on an issue, the Court finds against the party on the issue, and a favorable ruling on the issue is necessary for a judgment in the party’s favor. *See* FED. R. CIV. P. 52(c) [applicable to bankruptcy proceedings pursuant to Fed. R. Bankr. P. 7052]. Ms. Lewis was fully heard on her non-dischargeability action under 11 U.S.C. § 523(a)(6). Ms. Lewis’s evidence, however, fails to establish that the debt owed to her by Mr. Long is for a willful and malicious injury. A willful and malicious injury is an essential element of Ms. Lewis’s section 523(a)(6) action. As such,

Ms. Lewis's evidence is insufficient to support a finding that the debt owed her is non-dischargeable under 11 U.S.C. § 523(a)(6). For the reasons stated in the Court's contemporaneous memorandum opinion, it is hereby

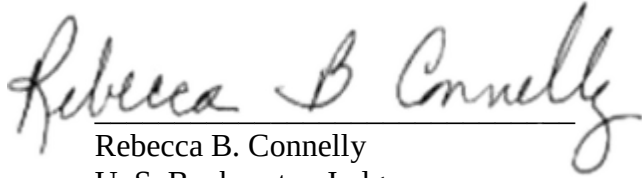
ORDERED

That Defendant's Rule 52(c) motion should be granted and judgment entered in his favor. Furthermore, it is

ORDERED

That Plaintiff's action to determine that the debt owed to her is non-dischargeable under 11 U.S.C. § 523(a)(6) is denied. Copies of this order shall be sent to the Plaintiff, Plaintiff's counsel, Defendant, and Defendant's counsel.

Date: January 28, 2014


Rebecca B. Connelly
U. S. Bankruptcy Judge